

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle and Last name) DEFENDANT

**PETITION TO SEAL CONVICTION FOR POSSESSION OF
CONTROLLED SUBSTANCE OR COUNTERFEIT SUBSTANCE UNDER
ACT 1460 OF 2013; A.C.A.16-90-1401, Et. Seq.**

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the _____ day of _____, _____,
and charged with the offense(s) of:
☐ Possession of Controlled Substance A.C.A.§5-64-419; or
☐ Possession of Counterfeit Substance A.C.A.§5-64-441; or
2. Prior to sentencing an intake officer appointed by the Court, where applicable,
determined the Defendant had a drug addiction and recommended the
Defendant as a candidate for residential drug treatment.
3. The Defendant was placed on probation by the Court. The terms and conditions
of the Order of Probation included the requirement that the Defendant
successfully complete a drug treatment program approved by the Court and
that the Defendant remain drug-free until successful completion of the
probation.

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**PETITION TO SEAL CONVICTION FOR POSSESSION OF
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ACT 1460 OF 2013; A.C.A.16-90-1401, Et. Seq.**

Comes the Defendant and for his/her petition to seal the record states:

1. The Defendant was arrested on the _____ day of _____, _____,
and charged with the offense(s) of:
☐ Possession of Controlled Substance A.C.A.§5-64-419; or
☐ Possession of Counterfeit Substance A.C.A.§5-64-441; or
2. Prior to sentencing an intake officer appointed by the Court, where applicable,
determined the Defendant had a drug addiction and recommended the
Defendant as a candidate for residential drug treatment.
3. The Defendant was placed on probation by the Court. The terms and conditions
of the Order of Probation included the requirement that the Defendant
successfully complete a drug treatment program approved by the Court and
that the Defendant remain drug-free until successful completion of the
probation.

4. The Defendant has successfully completed all of the terms and conditions of the Order of Probation.
5. Defendant has paid all court costs unless payment has been excused by the Court.
6. Defendant has repaid all Court ordered restitution.
7. Defendant has had no more than one (1) prior felony before this conviction.
8. ☐ The Defendant has completed all of the requirements of his or her sentence, or
☐ It has been at least one (1) year since the Court denied a Petition to Seal for this conviction.
9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A §16-90-1419.
10. ☐ Defendant has no pending felony charges in any state or federal court; or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

11. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq).
12. Defendant requests the Court enter a finding that he or she has been rehabilitated.
13. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

4. The Defendant has successfully completed all of the terms and conditions of the Order of Probation.
5. Defendant has paid all court costs unless payment has been excused by the Court.
6. Defendant has repaid all Court ordered restitution.
7. Defendant has had no more than one (1) prior felony before this conviction.
8. ☐ The Defendant has completed all of the requirements of his or her sentence, or
☐ It has been at least one (1) year since the Court denied a Petition to Seal for this conviction.
9. The Defendant has paid all filing fees required to be paid with the filing of this Petition mandated by A.C.A §16-90-1419.
10. ☐ Defendant has no pending felony charges in any state or federal court; or
☐ Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

11. Defendant ☐ **IS** or ☐ **IS NOT** required to register as a sex offender under the Sex Offender Registration Act of 1997 (A.C.A. § 12-12-901, et seq).
12. Defendant requests the Court enter a finding that he or she has been rehabilitated.
13. As evidenced by my signature below, the above information is true and correct to the best of Defendant's knowledge.

WHEREFORE, the Defendant, _____,
prays this Court enter an Order Sealing the above referenced felony
conviction(s) pursuant to A.C.A. §16-90-1407.

City: _____

State: _____ Zip code: _____

Defendant's Address

Defendant's Signature

Date

WHEREFORE, the Defendant, _____,
prays this Court enter an Order Sealing the above referenced felony
conviction(s) pursuant to A.C.A. §16-90-1407.

City: _____

State: _____ Zip code: _____

Defendant's Address

Defendant's Signature

Date

VERIFICATION

STATE OF ARKANSAS
COUNTY OF _____

Comes the Petitioner, _____, under oath and states
that the foregoing Petition is true and correct to the best of my knowledge
and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of _____,

_____, 20____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____

VERIFICATION

STATE OF ARKANSAS
COUNTY OF _____

Comes the Petitioner, _____, under oath and states
that the foregoing Petition is true and correct to the best of my knowledge
and belief.

Petitioner

Subscribed and sworn to before me on this _____,
day of _____,

_____, 20____.

(Seal)

Notary Public

My Commission expires: _____

**THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS**

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to the Prosecuting Attorney for the County in which the Petition has been filed and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to the Prosecuting Attorney for the County in which the Petition has been filed and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date